

Optical Media Act of 2003 (RA9239)
Data Privacy Act of 2012 (RA10173)
Cybercrime Prevention Act of 2012 (RA10175)
Department of Information And Communications Technology Act of 2015 (RA10844)

- NPC – National Privacy Commission
CISA – Credit Information System Act (RA 9510)
DOJ – Department of Justice
DICT – Department of Information and Communications Technology
SSS – Social Security System
GSIS – Government Service Insurance System
LTO – Land Transportation System
BIR – Bureau of Internal Revenue
PhilHealth – Philippine Health Insurance Corporation
COMELEC – Commission on Elections
DFA – Department of Foreign Affairs
Philpost – Philippine Postal Corporations
IRR – Implementing Rules and Regulations

Data Privacy Act of 2012 (RA10173)	
I. GENERAL PROVISIONS	
Section 1. Short Title	This Act shall be known as the “Data Privacy Act of 2012”
Section 2. Declaration Policy	It is the policy of the State to protect the fundamental human right of privacy, of communication while ensuring free flow of information to promote innovation and growth. The State recognizes the vital role of information and communications technology in nation-building and its inherent obligation to ensure that personal information in information and communications systems in the government and in the private sector are secured and protected.
Section 3. Definition of Terms	Whenever used in this Act, the following terms shall have the respective meanings hereafter set forth: (a) Commission shall refer to the National Privacy Commission created by virtue of this Act. (b) Consent of the data subject refers to any freely given, specific, informed indication of will, whereby the data subject agrees to the collection and processing of personal information about and/or relating to him or her. Consent shall be evidenced by written, electronic or recorded means. It may also be given on behalf of the data subject by an agent specifically authorized by the data subject to do so. (c) Data subject refers to an individual whose personal information is processed. (d) Direct marketing refers to communication by whatever means of any advertising or marketing material which is directed to particular individuals. (e) Filing system refers to any act of information relating to natural or juridical persons to the extent that, although the information is not processed by equipment operating automatically in response to instructions given for that purpose, the set is structured, either by reference to individuals or by reference to criteria relating to individuals, in such a way that specific information relating to a particular person is readily accessible (f) Information and Communications System refers to a system for generating, sending, receiving, storing or otherwise processing electronic data messages or electronic documents and includes the computer system or other similar device by or which data is recorded, transmitted or stored and any procedure related to the recording, transmission or storage of electronic data, electronic message, or electronic document. (g) Personal information refers to any information whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the

	information, or when put together with other information would directly and certainly identify an individual. (h) Personal information controller refers to a person or organization who controls the collection, holding, processing or use of personal information, including a person or organization who instructs another person or organization to collect, hold, process, use, transfer or disclose personal information on his or her behalf. The term excludes: (1) A person or organization who performs such functions as instructed by another person or organization; and (2) An individual who collects, holds, processes or uses personal information in connection with the individual's personal, family or household affairs. (i) Personal information processor refers to any natural or juridical person qualified to act as such under this Act to whom a personal information controller may outsource the processing of personal data pertaining to a data subject. (j) Processing refers to any operation or any set of operations performed upon personal information including, but not limited to, the collection, recording, organization, storage, updating or modification, retrieval, consultation, use, consolidation, blocking, erasure or destruction of data. (k) Privileged information refers to any and all forms of data which under the Rules of Court and other pertinent laws constitute privileged communication. (l) Sensitive personal information refers to personal information: (1) About an individual's race, ethnic origin, marital status, age, color, and religious, philosophical or political affiliations; (2) About an individual's health, education, genetic or sexual life of a person, or to any proceeding for any offense committed or alleged to have been committed by such person, the disposal of such proceedings, or the sentence of any court in such proceedings; (3) Issued by government agencies peculiar to an individual which includes, but not limited to, social security numbers, previous or current health records, licenses or its denials, suspension or revocation, and tax returns; and (4) Specifically established by an executive order or an act of Congress to be kept classified.
Section 4. Scope	This Act applies to the processing of all types of personal information and to any natural and juridical person involved in personal information processing including those personal information controllers and processors who, although not found or established in the Philippines, use equipment that are located in the Philippines, or those who maintain an office, branch or agency in the Philippines subject to the immediately succeeding paragraph: <i>Provided, That the requirements of Section 5 are complied with.</i> This Act does not apply to the following: (a) Information about any individual who is or was an officer or employee of a government institution that relates to the position or functions of the individual, including: (1) The fact that the individual is or was an officer or employee of the government institution; (2) The title, business address and office telephone number of the individual; (3) The classification, salary range and responsibilities of the position held by the individual; and (4) The name of the individual on a document prepared by the individual in the course of employment with the government;

	(b) Information about an individual who is or was performing service under contract for a government institution that relates to the services performed, including the terms of the contract, and the name of the individual given in the course of the performance of those services; (c) Information relating to any discretionary benefit of a financial nature such as the granting of a license or permit given by the government to an individual, including the name of the individual and the exact nature of the benefit; (d) Personal information processed for journalistic, artistic, literary or research purposes; (e) Information necessary in order to carry out the functions of public authority which includes the processing of personal data for the performance by the independent, central monetary authority and law enforcement and regulatory agencies of their constitutionally and statutorily mandated functions. Nothing in this Act shall be construed as to have amended or repealed Republic Act No. 1405, otherwise known as the Secrecy of Bank Deposits Act; Republic Act No. 6426, otherwise known as the Foreign Currency Deposit Act; and Republic Act No. 9510, otherwise known as the Credit Information System Act (CISA); (f) Information necessary for banks and other financial institutions under the jurisdiction of the independent, central monetary authority or Bangko Sentral ng Pilipinas to comply with Republic Act No. 9510, and Republic Act No. 9160, as amended, otherwise known as the Anti-Money Laundering Act and other applicable laws; and (g) Personal information originally collected from residents of foreign jurisdictions in accordance with the laws of those foreign jurisdictions, including any applicable data privacy laws, which is being processed in the Philippines.
Section 5. Protection Afforded to Journalists and Their Sources	Nothing in this Act shall be construed as to have amended or repealed the provisions of Republic Act No. 53, which affords the publishers, editors or duly accredited reporters of any newspaper, magazine or periodical of general circulation protection from being compelled to reveal the source of any news report or information appearing in said publication which was related in any confidence to such publisher, editor, or reporter.
Section 6. Extraterritorial Application	This Act applies to an act done or practice engaged in and outside of the Philippines by an entity if: (a) The act, practice or processing relates to personal information about a Philippine citizen or a resident; (b) The entity has a link with the Philippines, and the entity is processing personal information in the Philippines or even if the processing is outside the Philippines as long as it is about Philippine citizens or residents such as, but not limited to, the following: (1) A contract is entered in the Philippines; (2) A juridical entity unincorporated in the Philippines but has central management and control in the country; and (3) An entity that has a branch, agency, office or subsidiary in the Philippines and the parent or affiliate of the Philippine entity has access to personal information; and (c) The entity has other links in the Philippines such as, but not limited to: (1) The entity carries on business in the Philippines; and

	(2) The personal information was collected or held by an entity in the Philippines.
II. THE NATIONAL PRIVACY COMMISSION	
Section 7. Functions of National Privacy Commission	To administer and implement the provisions of this Act, and to monitor and ensure compliance of the country with international standards set for data protection, there is hereby created an independent body to be known as the National Privacy Commission, which shall have the following functions: (a) Ensure compliance of personal information controllers with the provisions of this Act; (b) Receive complaints, institute investigations, facilitate or enable settlement of complaints through the use of alternative dispute resolution processes, adjudicate, award indemnity on matters affecting any personal information, prepare reports on disposition of complaints and resolution of any investigation it initiates, and, in cases it deems appropriate, publicize any such report: <i>Provided</i>, That in resolving any complaint or investigation (except where amicable settlement is reached by the parties), the Commission shall act as a collegial body. For this purpose, the Commission may be given access to personal information that is subject of any complaint and to collect the information necessary to perform its functions under this Act; (c) Issue cease and desist orders, impose a temporary or permanent ban on the processing of personal information, upon finding that the processing will be detrimental to national security and public interest; (d) Compel or petition any entity, government agency or instrumentality to abide by its orders or take action on a matter affecting data privacy; (e) Monitor the compliance of other government agencies or instrumentalities on their security and technical measures and recommend the necessary action in order to meet minimum standards for protection of personal information pursuant to this Act; (f) Coordinate with other government agencies and the private sector on efforts to formulate and implement plans and policies to strengthen the protection of personal information in the country; (g) Publish on a regular basis a guide to all laws relating to data protection; (h) Publish a compilation of agency system of records and notices, including index and other finding aids; (i) Recommend to the Department of Justice (DOJ) the prosecution and imposition of penalties specified in Sections 25 to 29 of this Act; (j) Review, approve, reject or require modification of privacy codes voluntarily adhered to by personal information controllers:<i>Provided</i>, That the privacy codes shall adhere to the underlying data privacy principles embodied in this Act: <i>Provided, further</i>, That such privacy codes may include private dispute resolution mechanisms for complaints against any participating personal information controller. For this purpose, the Commission shall consult with relevant regulatory agencies in the formulation and administration of privacy codes applying the standards set out in this Act, with respect to the persons, entities, business activities and business sectors that said regulatory bodies are authorized to principally regulate pursuant to the law: <i>Provided, finally</i>. That the Commission may review such privacy codes and require changes thereto for purposes of complying with this Act; (k) Provide assistance on matters relating to privacy or data protection at the request of a national or local agency, a private entity or any person; (l) Comment on the implication on data privacy of proposed national or local statutes, regulations or procedures, issue advisory opinions and interpret the provisions of this Act and other data privacy laws; (m) Propose legislation, amendments or modifications to Philippine laws on privacy or data protection as may be necessary; (n) Ensure proper and effective coordination with data privacy regulators in other countries and private accountability agents, participate in international and regional initiatives for data privacy protection;

	(o) Negotiate and contract with other data privacy authorities of other countries for cross-border application and implementation of respective privacy laws; (p) Assist Philippine companies doing business abroad to respond to foreign privacy or data protection laws and regulations; and (q) Generally perform such acts as may be necessary to facilitate cross-border enforcement of data privacy protection.
Section 8. Confidentiality	The Commission shall ensure at all times the confidentiality of any personal information that comes to its knowledge and possession.
Section 9. Organizational Structure of the Commission	The Commission shall be attached to the Department of Information and Communications Technology (DICT) and shall be headed by a Privacy Commissioner, who shall also act as Chairman of the Commission. The Privacy Commissioner shall be assisted by two (2) Deputy Privacy Commissioners, one to be responsible for Data Processing Systems and one to be responsible for Policies and Planning. The Privacy Commissioner and the two (2) Deputy Privacy Commissioners shall be appointed by the President of the Philippines for a term of three (3) years, and may be reappointed for another term of three (3) years. Vacancies in the Commission shall be filled in the same manner in which the original appointment was made. The Privacy Commissioner must be at least thirty-five (35) years of age and of good moral character, unquestionable integrity and known probity, and a recognized expert in the field of information technology and data privacy. The Privacy Commissioner shall enjoy the benefits, privileges and emoluments equivalent to the rank of Secretary. The Deputy Privacy Commissioners must be recognized experts in the field of information and communications technology and data privacy. They shall enjoy the benefits, privileges and emoluments equivalent to the rank of Undersecretary. The Privacy Commissioner, the Deputy Commissioners, or any person acting on their behalf or under their direction, shall not be civilly liable for acts done in good faith in the performance of their duties. However, he or she shall be liable for willful or negligent acts done by him or her which are contrary to law, morals, public policy and good customs even if he or she acted under orders or instructions of superiors: <i>Provided</i>, That in case a lawsuit is filed against such official on the subject of the performance of his or her duties, where such performance is lawful, he or she shall be reimbursed by the Commission for reasonable costs of litigation.
Section 10. The Secretariat	The Commission is hereby authorized to establish a Secretariat. Majority of the members of the Secretariat must have served for at least five (5) years in any agency of the government that is involved in the processing of personal information including, but not limited to, the following offices: Social Security System (SSS), Government Service Insurance System (GSIS), Land Transportation Office (LTO), Bureau of Internal Revenue (BIR), Philippine Health Insurance Corporation (PhilHealth), Commission on Elections (COMELEC), Department of Foreign Affairs (DFA), Department of Justice (DOJ), and Philippine Postal Corporation (Philpost).
III. PROCESSING OF PERSONAL INFORMATION	
Section 11. General Data Privacy Principles	The processing of personal information shall be allowed, subject to compliance with the requirements of this Act and other laws allowing disclosure of information to the public and adherence to the principles of transparency, legitimate purpose and proportionality. Personal information must, be; (a) Collected for specified and legitimate purposes determined and declared before, or as soon as reasonably practicable after collection, and later processed in a way compatible with such declared, specified and legitimate purposes only;

	<i>Provided, finally,</i> That consent of the data subject was obtained prior to processing; (e) The processing is necessary for purposes of medical treatment, is carried out by a medical practitioner or a medical treatment institution, and an adequate level of protection of personal information is ensured; or (f) The processing concerns such personal information as is necessary for the protection of lawful rights and interests of natural or legal persons in court proceedings, or the establishment, exercise or defense of legal claims, or when provided to government or public authority.
Section 14. Subcontract of Personal Information	A personal information controller may subcontract the processing of personal information: <i>Provided,</i> That the personal information controller shall be responsible for ensuring that proper safeguards are in place to ensure the confidentiality of the personal information processed, prevent its use for unauthorized purposes, and generally, comply with the requirements of this Act and other laws for processing of personal information. The personal information processor shall comply with all the requirements of this Act and other applicable laws.
Section 15. Extension of Privileged Communication	Personal information controllers may invoke the principle of privileged communication over privileged information that they lawfully control or process. Subject to existing laws and regulations, any evidence gathered on privileged information is inadmissible.
IV. RIGHTS OF THE DATA SUBJECT	
Section 16. Rights of the Data Subject	The data subject is entitled to: (a) Be informed whether personal information pertaining to him or her shall be, are being or have been processed; (b) Be furnished the information indicated hereunder before the entry of his or her personal information into the processing system of the personal information controller, or at the next practical opportunity: (1) Description of the personal information to be entered into the system; (2) Purposes for which they are being or are to be processed; (3) Scope and method of the personal information processing; (4) The recipients or classes of recipients to whom they are or may be disclosed; (5) Methods utilized for automated access, if the same is allowed by the data subject, and the extent to which such access is authorized; (6) The identity and contact details of the personal information controller or its representative; (7) The period for which the information will be stored; and (8) The existence of their rights, i.e., to access, correction, as well as the right to lodge a complaint before the Commission. Any information supplied or declaration made to the data subject on these matters shall not be amended without prior notification of data subject: <i>Provided,</i> That the notification under subsection (b) shall not apply should the personal information be needed pursuant to a <i>subpoena</i> or when the collection and processing are for obvious purposes, including when it is necessary for the performance of or in relation to a contract or service or when necessary or desirable in the context of an employer-employee relationship, between the collector and the data subject, or when the information is being collected and processed as a result of legal obligation; (c) Reasonable access to, upon demand, the following: (1) Contents of his or her personal information that were processed; (2) Sources from which personal information were obtained; (3) Names and addresses of recipients of the personal information;

	(4) Manner by which such data were processed; (5) Reasons for the disclosure of the personal information to recipients; (6) Information on automated processes where the data will or likely to be made as the sole basis for any decision significantly affecting or will affect the data subject; (7) Date when his or her personal information concerning the data subject were last accessed and modified; and (8) The designation, or name or identity and address of the personal information controller; (d) Dispute the inaccuracy or error in the personal information and have the personal information controller correct it immediately and accordingly, unless the request is vexatious or otherwise unreasonable. If the personal information have been corrected, the personal information controller shall ensure the accessibility of both the new and the retracted information and the simultaneous receipt of the new and the retracted information by recipients thereof: <i>Provided</i>, That the third parties who have previously received such processed personal information shall be informed of its inaccuracy and its rectification upon reasonable request of the data subject; (e) Suspend, withdraw or order the blocking, removal or destruction of his or her personal information from the personal information controller's filing system upon discovery and substantial proof that the personal information are incomplete, outdated, false, unlawfully obtained, used for unauthorized purposes or are no longer necessary for the purposes for which they were collected. In this case, the personal information controller may notify third parties who have previously received such processed personal information; and (f) Be indemnified for any damages sustained due to such inaccurate, incomplete, outdated, false, unlawfully obtained or unauthorized use of personal information.
Section 17. Transmissibility of Rights of the Data Subject	The lawful heirs and assigns of the data subject may invoke the rights of the data subject for, which he or she is an heir or assignee at any time after the death of the data subject or when the data subject is incapacitated or incapable of exercising the rights as enumerated in the immediately preceding section.
Section 18. Right to Data Portability	The data subject shall have the right, where personal information is processed by electronic means and in a structured and commonly used format, to obtain from the personal information controller a copy of data undergoing processing in an electronic or structured format, which is commonly used and allows for further use by the data subject. The Commission may specify the electronic format referred to above, as well as the technical standards, modalities and procedures for their transfer.
Section 19. Non-Applicability	The immediately preceding sections are not applicable if the processed personal information are used only for the needs of scientific and statistical research and, on the basis of such, no activities are carried out and no decisions are taken regarding the data subject: <i>Provided</i> , That the personal information shall be held under strict confidentiality and shall be used only for the declared purpose. Likewise, the immediately preceding sections are not applicable to processing of personal information gathered for the purpose of investigations in relation to any criminal, administrative or tax liabilities of a data subject.
V. SECURITY OF PERSONAL INFORMATION	
Section 20. Security of Personal Information	(a) The personal information controller must implement reasonable and appropriate organizational, physical and technical measures intended for the protection of personal information against any accidental or unlawful destruction, alteration and disclosure, as well as against any other unlawful processing. (b) The personal information controller shall implement reasonable and appropriate measures to protect personal information against natural dangers such as accidental loss or destruction, and human dangers

	such as unlawful access, fraudulent misuse, unlawful destruction, alteration and contamination. (c) The determination of the appropriate level of security under this section must take into account the nature of the personal information to be protected, the risks represented by the processing, the size of the organization and complexity of its operations, current data privacy best practices and the cost of security implementation. Subject to guidelines as the Commission may issue from time to time, the measures implemented must include: (1) Safeguards to protect its computer network against accidental, unlawful or unauthorized usage or interference with or hindering of their functioning or availability; (2) A security policy with respect to the processing of personal information; (3) A process for identifying and accessing reasonably foreseeable vulnerabilities in its computer networks, and for taking preventive, corrective and mitigating action against security incidents that can lead to a security breach; and (4) Regular monitoring for security breaches and a process for taking preventive, corrective and mitigating action against security incidents that can lead to a security breach. (d) The personal information controller must further ensure that third parties processing personal information on its behalf shall implement the security measures required by this provision. (e) The employees, agents or representatives of a personal information controller who are involved in the processing of personal information shall operate and hold personal information under strict confidentiality if the personal information are not intended for public disclosure. This obligation shall continue even after leaving the public service, transfer to another position or upon termination of employment or contractual relations. (f) The personal information controller shall promptly notify the Commission and affected data subjects when sensitive personal information or other information that may, under the circumstances, be used to enable identity fraud are reasonably believed to have been acquired by an unauthorized person, and the personal information controller or the Commission believes that such unauthorized acquisition is likely to give rise to a real risk of serious harm to any affected data subject. The notification shall at least describe the nature of the breach, the sensitive personal information possibly involved, and the measures taken by the entity to address the breach. Notification may be delayed only to the extent necessary to determine the scope of the breach, to prevent further disclosures, or to restore reasonable integrity to the information and communications system. (1) In evaluating if notification is unwarranted, the Commission may take into account compliance by the personal information controller with this section and existence of good faith in the acquisition of personal information. (2) The Commission may exempt a personal information controller from notification where, in its reasonable judgment, such notification would not be in the public interest or in the interests of the affected data subjects. (3) The Commission may authorize postponement of notification where it may hinder the progress of a criminal investigation related to a serious breach.
VI. ACCOUNTABILITY FOR TRANSFER OF PERSONAL INFORMATION	
Section 21. Principle of Accountability	Each personal information controller is responsible for personal information under its control or custody, including information that have been transferred to a third party for processing, whether domestically or internationally, subject to cross-border arrangement and cooperation.

	(a) The personal information controller is accountable for complying with the requirements of this Act and shall use contractual or other reasonable means to provide a comparable level of protection while the information are being processed by a third party. (b) The personal information controller shall designate an individual or individuals who are accountable for the organization's compliance with this Act. The identity of the individual(s) so designated shall be made known to any data subject upon request.
VII. SECURITY OF SENSITIVE PERSONAL INFORMATION IN GOVERNMENT	
Section 22. Responsibility of Head of Agencies	All sensitive personal information maintained by the government, its agencies and instrumentalities shall be secured, as far as practicable, with the use of the most appropriate standard recognized by the information and communications technology industry, and as recommended by the Commission. The head of each government agency or instrumentality shall be responsible for complying with the security requirements mentioned herein while the Commission shall monitor the compliance and may recommend the necessary action in order to satisfy the minimum standards.
Section 23. Requirements Relating to Access by Agency Personnel to Sensitive Personal Information	(a) On-site and Online Access – Except as may be allowed through guidelines to be issued by the Commission, no employee of the government shall have access to sensitive personal information on government property or through online facilities unless the employee has received a security clearance from the head of the source agency. (b) Off-site Access – Unless otherwise provided in guidelines to be issued by the Commission, sensitive personal information maintained by an agency may not be transported or accessed from a location off government property unless a request for such transportation or access is submitted and approved by the head of the agency in accordance with the following guidelines: (1) Deadline for Approval or Disapproval – In the case of any request submitted to the head of an agency, such head of the agency shall approve or disapprove the request within two (2) business days after the date of submission of the request. In case there is no action by the head of the agency, then such request is considered disapproved; (2) Limitation to One thousand (1,000) Records – If a request is approved, the head of the agency shall limit the access to not more than one thousand (1,000) records at a time; and (3) Encryption – Any technology used to store, transport or access sensitive personal information for purposes of off-site access approved under this subsection shall be secured by the use of the most secure encryption standard recognized by the Commission. The requirements of this subsection shall be implemented not later than six (6) months after the date of the enactment of this Act.
Section 24. Applicability to Government Contractors	In entering into any contract that may involve accessing or requiring sensitive personal information from one thousand (1,000) or more individuals, an agency shall require a contractor and its employees to register their personal information processing system with the Commission in accordance with this Act and to comply with the other provisions of this Act including the immediately preceding section, in the same manner as agencies and government employees comply with such requirements.
VIII. PENALTIES	
Section 25. Unauthorized Processing of Personal Information and Sensitive Personal Information	(a) The unauthorized processing of personal information shall be penalized by imprisonment ranging from one (1) year to three (3) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Two million pesos (Php2,000,000.00) shall be imposed on persons who process personal information without the consent of the data subject, or without being authorized under this Act or any existing law.

	(b) The unauthorized processing of personal sensitive information shall be penalized by imprisonment ranging from three (3) years to six (6) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Four million pesos (Php4,000,000.00) shall be imposed on persons who process personal information without the consent of the data subject, or without being authorized under this Act or any existing law.
Section 26. Accessing Personal Information and Sensitive Personal Information Due to Negligence.	(a) Accessing personal information due to negligence shall be penalized by imprisonment ranging from one (1) year to three (3) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Two million pesos (Php2,000,000.00) shall be imposed on persons who, due to negligence, provided access to personal information without being authorized under this Act or any existing law. (b) Accessing sensitive personal information due to negligence shall be penalized by imprisonment ranging from three (3) years to six (6) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Four million pesos (Php4,000,000.00) shall be imposed on persons who, due to negligence, provided access to personal information without being authorized under this Act or any existing law.
Section 27. Improper Disposal of Personal Information and Sensitive Personal Information	(a) The improper disposal of personal information shall be penalized by imprisonment ranging from six (6) months to two (2) years and a fine of not less than One hundred thousand pesos (Php100,000.00) but not more than Five hundred thousand pesos (Php500,000.00) shall be imposed on persons who knowingly or negligently dispose, discard or abandon the personal information of an individual in an area accessible to the public or has otherwise placed the personal information of an individual in its container for trash collection. (b) The improper disposal of sensitive personal information shall be penalized by imprisonment ranging from one (1) year to three (3) years and a fine of not less than One hundred thousand pesos (Php100,000.00) but not more than One million pesos (Php1,000,000.00) shall be imposed on persons who knowingly or negligently dispose, discard or abandon the personal information of an individual in an area accessible to the public or has otherwise placed the personal information of an individual in its container for trash collection.
Section 28. Processing of Personal Information and Sensitive Personal Information for Unauthorized Purposes	The processing of personal information for unauthorized purposes shall be penalized by imprisonment ranging from one (1) year and six (6) months to five (5) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than One million pesos (Php1,000,000.00) shall be imposed on persons processing personal information for purposes not authorized by the data subject, or otherwise authorized under this Act or under existing laws. The processing of sensitive personal information for unauthorized purposes shall be penalized by imprisonment ranging from two (2) years to seven (7) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Two million pesos (Php2,000,000.00) shall be imposed on persons processing sensitive personal information for purposes not authorized by the data subject, or otherwise authorized under this Act or under existing laws.
Section 29. Unauthorized Access or Intentional Breach	The penalty of imprisonment ranging from one (1) year to three (3) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Two million pesos (Php2,000,000.00) shall be imposed on persons who knowingly and unlawfully, or violating data confidentiality and security data systems, breaks in any way into any system where personal and sensitive personal information is stored.
Section 30. Concealment of Security Breaches Involving Sensitive Personal Information	The penalty of imprisonment of one (1) year and six (6) months to five (5) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than One million pesos (Php1,000,000.00) shall be imposed on persons who, after having knowledge of a security breach and of the obligation to notify

	the Commission pursuant to Section 20(f), intentionally or by omission conceals the fact of such security breach.
Section 31. Malicious Disclosure	Any personal information controller or personal information processor or any of its officials, employees or agents, who, with malice or in bad faith, discloses unwarranted or false information relative to any personal information or personal sensitive information obtained by him or her, shall be subject to imprisonment ranging from one (1) year and six (6) months to five (5) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than One million pesos (Php1,000,000.00).
Section 32. Unauthorized Disclosure	(a) Any personal information controller or personal information processor or any of its officials, employees or agents, who discloses to a third party personal information not covered by the immediately preceding section without the consent of the data subject, shall be subject to imprisonment ranging from one (1) year to three (3) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than One million pesos (Php1,000,000.00). (b) Any personal information controller or personal information processor or any of its officials, employees or agents, who discloses to a third party sensitive personal information not covered by the immediately preceding section without the consent of the data subject, shall be subject to imprisonment ranging from three (3) years to five (5) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Two million pesos (Php2,000,000.00).
Section 33. Combination of Series of Acts.	Any combination or series of acts as defined in Sections 25 to 32 shall make the person subject to imprisonment ranging from three (3) years to six (6) years and a fine of not less than One million pesos (Php1,000,000.00) but not more than Five million pesos (Php5,000,000.00).
Section 34. Extent of Liability	If the offender is a corporation, partnership or any juridical person, the penalty shall be imposed upon the responsible officers, as the case may be, who participated in, or by their gross negligence, allowed the commission of the crime. If the offender is a juridical person, the court may suspend or revoke any of its rights under this Act. If the offender is an alien, he or she shall, in addition to the penalties herein prescribed, be deported without further proceedings after serving the penalties prescribed. If the offender is a public official or employee and he or she is found guilty of acts penalized under Sections 27 and 28 of this Act, he or she shall, in addition to the penalties prescribed herein, suffer perpetual or temporary absolute disqualification from office, as the case may be.
Section 35. Large-Scale	The maximum penalty in the scale of penalties respectively provided for the preceding offenses shall be imposed when the personal information of at least one hundred (100) persons is harmed, affected or involved as the result of the above mentioned actions.
Section 36. Offense Committed by Public Officer	When the offender or the person responsible for the offense is a public officer as defined in the Administrative Code of the Philippines in the exercise of his or her duties, an accessory penalty consisting in the disqualification to occupy public office for a term double the term of criminal penalty imposed shall be applied.
Section 37. Resolution	Restitution for any aggrieved party shall be governed by the provisions of the New Civil Code.
IX. MISCELLANEOUS PROVISIONS	
Section 38. Interpretation	Any doubt in the interpretation of any provision of this Act shall be liberally interpreted in a manner mindful of the rights and interests of the individual about whom personal information is processed.
Section 39. Implementing Rules and Regulations (IRR)	Within ninety (90) days from the effectivity of this Act, the Commission shall promulgate the rules and regulations to effectively implement the provisions of this Act.
Section 40. Reports and Information	The Commission shall annually report to the President and Congress on its activities in carrying out the provisions of this Act. The Commission shall undertake whatever efforts it may determine to be necessary or appropriate to inform and educate the public of data privacy, data protection and fair information rights and responsibilities.

Section 41. Appropriations Clause	The Commission shall be provided with an initial appropriation of Twenty million pesos (Php20,000,000.00) to be drawn from the national government. Appropriations for the succeeding years shall be included in the General Appropriations Act. It shall likewise receive Ten million pesos (Php10,000,000.00) per year for five (5) years upon implementation of this Act drawn from the national government.
Section 42. Transitory Provision	Existing industries, businesses and offices affected by the implementation of this Act shall be given one (1) year transitory period from the effectivity of the IRR or such other period as may be determined by the Commission, to comply with the requirements of this Act. In case that the DICT has not yet been created by the time the law takes full force and effect, the National Privacy Commission shall be attached to the Office of the President.
Section 43. Separability Clause	If any provision or part hereof is held invalid or unconstitutional, the remainder of the law or the provision not otherwise affected shall remain valid and subsisting.
Section 44. Repealing Clause	The provision of Section 7 of Republic Act No. 9372, otherwise known as the “Human Security Act of 2007”, is hereby amended. Except as otherwise expressly provided in this Act, all other laws, decrees, executive orders, proclamations and administrative regulations or parts thereof inconsistent herewith are hereby repealed or modified accordingly.
Section 45. Effectivity Clause	This Act shall take effect fifteen (15) days after its publication in at least two (2) national newspapers of general circulation.
Approved, (Sgd.) FELICIANO BELMONTE JR. Speaker of the House of Representatives (Sgd.) JUAN PONCE ENRILE President of the Senate This Act which is a consolidation of Senate Bill No. 2965 and House Bill No. 4115 was finally passed by the Senate and the House of Representatives on June 6, 2012. (Sgd.) MARILYN B. BARUA-YAP Secretary General House of Representatives (Sgd.) EMMA LIRIO-REYES Secretary of the Senate Approved: AUG 15 2012 (Sgd.) BENIGNO S. AQUINO III President of the Philippines	

<https://www.officialgazette.gov.ph/2012/09/12/republic-act-no-10175/>

https://lawphil.net/statutes/repacts/ra2016/ra_10844_2016.html

- ICT – Information and Communications Technology
- NBI – National Bureau of Investigation
- PNP – Philippine National Police
- DOJ – Department of Justice
- CICC – Cybercrime Investigation and Coordinating Center
- ICTO-DOST – Information Communications Technology Office under the Department of Science and Technology
- CERT – Computer Emergency Response Team
- DILG – Department of the Interior and Local Government

Cybercrime Prevention Act of 2012 (RA10175)	
Chapter 1. Preliminary Provisions	
Section 1. Title	This Act shall be known as the “Cybercrime Prevention Act of 2012”.
Section 2. Declaration Policy	The State recognizes the vital role of information and communications industries such as content production, telecommunications, broadcasting electronic commerce, and data processing, in the nation’s overall social and economic development. The State also recognizes the importance of providing an environment conducive to the development, acceleration, and rational application and exploitation of information and communications technology

	(ICT) to attain free, easy, and intelligible access to exchange and/or delivery of information; and the need to protect and safeguard the integrity of computer, computer and communications systems, networks, and databases, and the confidentiality, integrity, and availability of information and data stored therein, from all forms of misuse, abuse, and illegal access by making punishable under the law such conduct or conducts. In this light, the State shall adopt sufficient powers to effectively prevent and combat such offenses by facilitating their detection, investigation, and prosecution at both the domestic and international levels, and by providing arrangements for fast and reliable international cooperation.
Section 3. Definition of Terms	For purposes of this Act, the following terms are hereby defined as follows: (a) Access refers to the instruction, communication with, storing data in, retrieving data from, or otherwise making use of any resources of a computer system or communication network. (b) Alteration refers to the modification or change, in form or substance, of an existing computer data or program. (c) Communication refers to the transmission of information through ICT media, including voice, video and other forms of data. (d) Computer refers to an electronic, magnetic, optical, electrochemical, or other data processing or communications device, or grouping of such devices, capable of performing logical, arithmetic, routing, or storage functions and which includes any storage facility or equipment or communications facility or equipment directly related to or operating in conjunction with such device. It covers any type of computer device including devices with data processing capabilities like mobile phones, smart phones, computer networks and other devices connected to the internet. (e) Computer data refers to any representation of facts, information, or concepts in a form suitable for processing in a computer system including a program suitable to cause a computer system to perform a function and includes electronic documents and/or electronic data messages whether stored in local computer systems or online. (f) Computer program refers to a set of instructions executed by the computer to achieve intended results. (g) Computer system refers to any device or group of interconnected or related devices, one or more of which, pursuant to a program, performs automated processing of data. It covers any type of device with data processing capabilities including, but not limited to, computers and mobile phones. The device consisting of hardware and software may include input, output and storage components which may stand alone or be connected in a network or other similar devices. It also includes computer data storage devices or media. (h) Without right refers to either: (i) conduct undertaken without or in excess of authority; or (ii) conduct not covered by established legal defenses, excuses, court orders, justifications, or relevant principles under the law. (i) Cyber refers to a computer or a computer network, the electronic medium in which online communication takes place. (j) Critical infrastructure refers to the computer systems, and/or networks, whether physical or virtual, and/or the computer programs, computer data and/or traffic data so vital to this country that the incapacity or destruction of or interference with such system and assets would have a debilitating impact on security, national or economic security, national public health and safety, or any combination of those matters. (k) Cybersecurity refers to the collection of tools, policies, risk management approaches, actions, training, best practices, assurance and technologies that can be used to protect the cyber environment and organization and user's assets. (l) Database refers to a representation of information, knowledge, facts, concepts, or instructions which are being prepared, processed or stored or have been prepared, processed or stored in a formalized manner and which are intended for use in a computer system.

	(m) Interception refers to listening to, recording, monitoring or surveillance of the content of communications, including procuring of the content of data, either directly, through access and use of a computer system or indirectly, through the use of electronic eavesdropping or tapping devices, at the same time that the communication is occurring. (n) Service provider refers to: (1) Any public or private entity that provides to users of its service the ability to communicate by means of a computer system; and (2) Any other entity that processes or stores computer data on behalf of such communication service or users of such service. (o) Subscriber's information refers to any information contained in the form of computer data or any other form that is held by a service provider, relating to subscribers of its services other than traffic or content data and by which identity can be established: (1) The type of communication service used, the technical provisions taken thereto and the period of service; (2) The subscriber's identity, postal or geographic address, telephone and other access numbers, any assigned network address, billing and payment information, available on the basis of the service agreement or arrangement; and (3) Any other available information on the site of the installation of communication equipment, available on the basis of the service agreement or arrangement. (p) Traffic data or non-content data refers to any computer data other than the content of the communication including, but not limited to, the communication's origin, destination, route, time, date, size, duration, or type of underlying service.
Chapter II. Punishable Acts	
Section 4. Cybercrime Offenses	The following acts constitute the offense of cybercrime punishable under this Act: (a) Offenses against the confidentiality, integrity and availability of computer data and systems: (1) Illegal Access. – The access to the whole or any part of a computer system without right. (2) Illegal Interception. – The interception made by technical means without right of any non-public transmission of computer data to, from, or within a computer system including electromagnetic emissions from a computer system carrying such computer data. (3) Data Interference. — The intentional or reckless alteration, damaging, deletion or deterioration of computer data, electronic document, or electronic data message, without right, including the introduction or transmission of viruses. (4) System Interference. — The intentional alteration or reckless hindering or interference with the functioning of a computer or computer network by inputting, transmitting, damaging, deleting, deteriorating, altering or suppressing computer data or program, electronic document, or electronic data message, without right or authority, including the introduction or transmission of viruses. (5) Misuse of Devices. (i) The use, production, sale, procurement, importation, distribution, or otherwise making available, without right, of: (aa) A device, including a computer program, designed or adapted primarily for the purpose of committing any of the offenses under this Act; or (bb) A computer password, access code, or similar data by which the whole or any part of a computer system is capable of being accessed with intent that it be used for the purpose of committing any of the offenses under this Act.

	(ii) The possession of an item referred to in paragraphs 5(i)(aa) or (bb) above with intent to use said devices for the purpose of committing any of the offenses under this section. (6) Cyber-squatting. – The acquisition of a domain name over the internet in bad faith to profit, mislead, destroy reputation, and deprive others from registering the same, if such a domain name is: (i) Similar, identical, or confusingly similar to an existing trademark registered with the appropriate government agency at the time of the domain name registration; (ii) Identical or in any way similar with the name of a person other than the registrant, in case of a personal name; and (iii) Acquired without right or with intellectual property interests in it. (b) Computer-related Offenses: (1) Computer-related Forgery. — (i) The input, alteration, or deletion of any computer data without right resulting in inauthentic data with the intent that it be considered or acted upon for legal purposes as if it were authentic, regardless whether or not the data is directly readable and intelligible; or (ii) The act of knowingly using computer data which is the product of computer-related forgery as defined herein, for the purpose of perpetuating a fraudulent or dishonest design. (2) Computer-related Fraud. — The unauthorized input, alteration, or deletion of computer data or program or interference in the functioning of a computer system, causing damage thereby with fraudulent intent: <i>Provided</i>, That if no damage has yet been caused, the penalty imposable shall be one (1) degree lower. (3) Computer-related Identity Theft. – The intentional acquisition, use, misuse, transfer, possession, alteration or deletion of identifying information belonging to another, whether natural or juridical, without right: <i>Provided</i>, That if no damage has yet been caused, the penalty imposable shall be one (1) degree lower. (i) There is prior affirmative consent from the recipient; or (ii) The primary intent of the communication is for service and/or administrative announcements from the sender to its existing users, subscribers or customers; or (iii) The following conditions are present: (aa) The commercial electronic communication contains a simple, valid, and reliable way for the recipient to reject. receipt of further commercial electronic messages (opt-out) from the same source; (bb) The commercial electronic communication does not purposely disguise the source of the electronic message; and (cc) The commercial electronic communication does not purposely include misleading information in any part of the message in order to induce the recipients to read the message. (4) Libel. — The unlawful or prohibited acts of libel as defined in Article 355 of the Revised Penal Code, as amended, committed through a computer system or any other similar means which may be devised in the future.
Section 5. Other Offenses	The following acts shall also constitute an offense: (a) Aiding or Abetting in the Commission of Cybercrime. – Any person who willfully abets or aids in the commission of any of the offenses enumerated in this Act shall be held liable. (b) Attempt in the Commission of Cybercrime. — Any person who willfully attempts to commit any of the offenses enumerated in this Act shall be held liable.
Section 6.	All crimes defined and penalized by the Revised Penal Code, as amended, and special laws, if committed by, through and with the use of information and communications technologies shall be covered by the relevant provisions of this Act: <i>Provided</i>, That the penalty to be imposed shall be one (1) degree higher than that provided for by the Revised Penal Code, as amended, and special laws, as the case may be.

Section 7. Liability under Other Laws	A prosecution under this Act shall be without prejudice to any liability for violation of any provision of the Revised Penal Code, as amended, or special laws.
Chapter III Penalties	
Section 8. Penalties	Any person found guilty of any of the punishable acts enumerated in Sections 4(a) and 4(b) of this Act shall be punished with imprisonment of <i>prision mayor</i> or a fine of at least Two hundred thousand pesos (PhP200,000.00) up to a maximum amount commensurate to the damage incurred or both. Any person found guilty of the punishable act under Section 4(a)(5) shall be punished with imprisonment of <i>prision mayor</i> or a fine of not more than Five hundred thousand pesos (PhP500,000.00) or both. If punishable acts in Section 4(a) are committed against critical infrastructure, the penalty of <i>reclusion temporal</i> or a fine of at least Five hundred thousand pesos (PhP500,000.00) up to maximum amount commensurate to the damage incurred or both, shall be imposed. Any person found guilty of any of the punishable acts enumerated in Section 4(c)(1) of this Act shall be punished with imprisonment of <i>prision mayor</i> or a fine of at least Two hundred thousand pesos (PhP200,000.00) but not exceeding One million pesos (PhP1,000,000.00) or both. Any person found guilty of any of the punishable acts enumerated in Section 4(c)(2) of this Act shall be punished with the penalties as enumerated in Republic Act No. 9775 or the “Anti-Child Pornography Act of 2009”: <i>Provided</i>, That the penalty to be imposed shall be one (1) degree higher than that provided for in Republic Act No. 9775, if committed through a computer system. Any person found guilty of any of the punishable acts enumerated in Section 4(c)(3) shall be punished with imprisonment of <i>arresto mayor</i> or a fine of at least Fifty thousand pesos (PhP50,000.00) but not exceeding Two hundred fifty thousand pesos (PhP250,000.00) or both. Any person found guilty of any of the punishable acts enumerated in Section 5 shall be punished with imprisonment one (1) degree lower than that of the prescribed penalty for the offense or a fine of at least One hundred thousand pesos (PhP100,000.00) but not exceeding Five hundred thousand pesos (PhP500,000.00) or both.
Section 9. Corporate Liability	When any of the punishable acts herein defined are knowingly committed on behalf of or for the benefit of a juridical person, by a natural person acting either individually or as part of an organ of the juridical person, who has a leading position within, based on: (a) a power of representation of the juridical person provided the act committed falls within the scope of such authority; (b) an authority to take decisions on behalf of the juridical person: <i>Provided</i>, That the act committed falls within the scope of such authority; or (c) an authority to exercise control within the juridical person, the juridical person shall be held liable for a fine equivalent to at least double the fines imposable in Section 7 up to a maximum of Ten million pesos (PhP10,000,000.00). If the commission of any of the punishable acts herein defined was made possible due to the lack of supervision or control by a natural person referred to and described in the preceding paragraph, for the benefit of that juridical person by a natural person acting under its authority, the juridical person shall be held liable for a fine equivalent to at least double the fines imposable in Section 7 up to a maximum of Five million pesos (PhP5,000,000.00). The liability imposed on the juridical person shall be without prejudice to the criminal liability of the natural person who has committed the offense.

Chapter IV Enforcement and Implementation	
Section 10. Law Enforcement Authorities	The National Bureau of Investigation (NBI) and the Philippine National Police (PNP) shall be responsible for the efficient and effective law enforcement of the provisions of this Act. The NBI and the PNP shall organize a cybercrime unit or center manned by special investigators to exclusively handle cases involving violations of this Act.
Section 11. Duties of Law Enforcement Authorities	To ensure that the technical nature of cybercrime and its prevention is given focus and considering the procedures involved for international cooperation, law enforcement authorities specifically the computer or technology crime divisions or units responsible for the investigation of cybercrimes are required to submit timely and regular reports including pre-operation, post-operation and investigation results and such other documents as may be required to the Department of Justice (DOJ) for review and monitoring.
Section 12. Real-Time Collection of Traffic Data	Law enforcement authorities, with due cause, shall be authorized to collect or record by technical or electronic means traffic data in real-time associated with specified communications transmitted by means of a computer system. Traffic data refer only to the communication's origin, destination, route, time, date, size, duration, or type of underlying service, but not content, nor identities. All other data to be collected or seized or disclosed will require a court warrant. Service providers are required to cooperate and assist law enforcement authorities in the collection or recording of the above-stated information. The court warrant required under this section shall only be issued or granted upon written application and the examination under oath or affirmation of the applicant and the witnesses he may produce and the showing: (1) that there are reasonable grounds to believe that any of the crimes enumerated hereinabove has been committed, or is being committed, or is about to be committed; (2) that there are reasonable grounds to believe that evidence that will be obtained is essential to the conviction of any person for, or to the solution of, or to the prevention of, any such crimes; and (3) that there are no other means readily available for obtaining such evidence.
Section 13. Preservation of Computer Data	The integrity of traffic data and subscriber information relating to communication services provided by a service provider shall be preserved for a minimum period of six (6) months from the date of the transaction. Content data shall be similarly preserved for six (6) months from the date of receipt of the order from law enforcement authorities requiring its preservation. Law enforcement authorities may order a one-time extension for another six (6) months: <i>Provided</i>, That once computer data preserved, transmitted or stored by a service provider is used as evidence in a case, the mere furnishing to such service provider of the transmittal document to the Office of the Prosecutor shall be deemed a notification to preserve the computer data until the termination of the case. The service provider ordered to preserve computer data shall keep confidential the order and its compliance.
Section 14. Disclosure of Computer Data	Law enforcement authorities, upon securing a court warrant, shall issue an order requiring any person or service provider to disclose or submit subscriber's information, traffic data or relevant data in his/its possession or control within seventy-two (72) hours from receipt of the order in relation to a valid complaint officially docketed and assigned for investigation and the disclosure is necessary and relevant for the purpose of investigation.

Section 15. Search, Seizure and Examination of Computer Data	Where a search and seizure warrant is properly issued, the law enforcement authorities shall likewise have the following powers and duties. Within the time period specified in the warrant, to conduct interception, as defined in this Act, and: (a) To secure a computer system or a computer data storage medium; (b) To make and retain a copy of those computer data secured; (c) To maintain the integrity of the relevant stored computer data; (d) To conduct forensic analysis or examination of the computer data storage medium; and (e) To render inaccessible or remove those computer data in the accessed computer or computer and communications network. Pursuant thereof, the law enforcement authorities may order any person who has knowledge about the functioning of the computer system and the measures to protect and preserve the computer data therein to provide, as is reasonable, the necessary information, to enable the undertaking of the search, seizure and examination. Law enforcement authorities may request for an extension of time to complete the examination of the computer data storage medium and to make a return thereon but in no case for a period longer than thirty (30) days from date of approval by the court.
Section 16. Custody of Computer Data	All computer data, including content and traffic data, examined under a proper warrant shall, within forty-eight (48) hours after the expiration of the period fixed therein, be deposited with the court in a sealed package, and shall be accompanied by an affidavit of the law enforcement authority executing it stating the dates and times covered by the examination, and the law enforcement authority who may access the deposit, among other relevant data. The law enforcement authority shall also certify that no duplicates or copies of the whole or any part thereof have been made, or if made, that all such duplicates or copies are included in the package deposited with the court. The package so deposited shall not be opened, or the recordings replayed, or used in evidence, or then contents revealed, except upon order of the court, which shall not be granted except upon motion, with due notice and opportunity to be heard to the person or persons whose conversation or communications have been recorded.
Section 17. Destruction of Computer Data	Upon expiration of the periods as provided in Sections 13 and 15, service providers and law enforcement authorities, as the case may be, shall immediately and completely destroy the computer data subject of a preservation and examination.
Section 18. Exclusionary Rule	Any evidence procured without a valid warrant or beyond the authority of the same shall be inadmissible for any proceeding before any court or tribunal.
Section 19. Restricting or Blocking Access to Computer Data	When a computer data is <i>prima facie</i> found to be in violation of the provisions of this Act, the DOJ shall issue an order to restrict or block access to such computer data.
Section 20. Noncompliance	Failure to comply with the provisions of Chapter IV hereof specifically the orders from law enforcement authorities shall be punished as a violation of Presidential Decree No. 1829 with imprisonment of <i>prision correctional</i> in its maximum period or a fine of One hundred thousand pesos (Php100,000.00) or both, for each and every noncompliance with an order issued by law enforcement authorities.
Chapter V Jurisdiction	
Section 21. Jurisdiction	The Regional Trial Court shall have jurisdiction over any violation of the provisions of this Act. including any violation committed by a Filipino national regardless of the place of commission. Jurisdiction shall lie if any of the elements was committed within the Philippines or committed with the use of any computer system wholly or partly situated in the country, or when by such commission any damage is caused to a natural or juridical person who, at the time the offense was committed, was in the Philippines.

	There shall be designated special cybercrime courts manned by specially trained judges to handle cybercrime cases.
Chapter VI International Cooperation	
Section 22. General Principles Relating to International Cooperation	All relevant international instruments on international cooperation in criminal matters, arrangements agreed on the basis of uniform or reciprocal legislation, and domestic laws, to the widest extent possible for the purposes of investigations or proceedings concerning criminal offenses related to computer systems and data, or for the collection of evidence in electronic form of a criminal, offense shall be given full force and effect.
Chapter VII Competent Authorities	
Section 23. Department of Justice (DOJ)	There is hereby created an Office of Cybercrime within the DOJ designated as the central authority in all matters related to international mutual assistance and extradition.
Section 24. Cybercrime Investigation and Coordination Center	There is hereby created, within thirty (30) days from the effectivity of this Act, an inter-agency body to be known as the Cybercrime Investigation and Coordinating Center (CICC), under the administrative supervision of the Office of the President, for policy coordination among concerned agencies and for the formulation and enforcement of the national cybersecurity plan.
Section 25. Composition	The CICC shall be headed by the Executive Director of the Information and Communications Technology Office under the Department of Science and Technology (ICTO-DOST) as Chairperson with the Director of the NBI as Vice Chairperson; the Chief of the PNP; Head of the DOJ Office of Cybercrime; and one (1) representative from the private sector and academe, as members. The CICC shall be manned by a secretariat of selected existing personnel and representatives from the different participating agencies.
Section 26. Powers and Functions	The CICC shall have the following powers and functions: (a) To formulate a national cybersecurity plan and extend immediate assistance for the suppression of real-time commission of cybercrime offenses through a computer emergency response team (CERT); (b) To coordinate the preparation of appropriate and effective measures to prevent and suppress cybercrime activities as provided for in this Act; (c) To monitor cybercrime cases being bandied by participating law enforcement and prosecution agencies; (d) To facilitate international cooperation on intelligence, investigations, training and capacity building related to cybercrime prevention, suppression and prosecution; (e) To coordinate the support and participation of the business sector, local government units and nongovernment organizations in cybercrime prevention programs and other related projects; (f) To recommend the enactment of appropriate laws, issuances, measures and policies; (g) To call upon any government agency to render assistance in the accomplishment of the CICC's mandated tasks and functions; and (h) To perform all other matters related to cybercrime prevention and suppression, including capacity building and such other functions and duties as may be necessary for the proper implementation of this Act.
Chapter VIII Final Provisions	
Section 27. Appropriations	The amount of Fifty million pesos (PhP50,000,000.00) shall be appropriated annually for the implementation of this Act.
Section 28. Implementing Rules and Regulations	The ICTO-DOST, the DOJ and the Department of the Interior and Local Government (DILG) shall jointly formulate the necessary rules and regulations within ninety (90) days from approval of this Act, for its effective implementation.
Section 29. Separability Clause	If any provision of this Act is held invalid, the other provisions not affected shall remain in full force and effect.

Section 30. Repealing Clause	All laws, decrees or rules inconsistent with this Act are hereby repealed or modified accordingly. Section 33(a) of Republic Act No. 8792 or the “Electronic Commerce Act” is hereby modified accordingly.
Section 31. Effectivity	This Act shall take effect fifteen (15) days after the completion of its publication in the <i>Official Gazette</i> or in at least two (2) newspapers of general circulation.
Approved, (Sgd.) FELICIANO BELMONTE JR. Speaker of the House of Representatives (Sgd.) JUAN PONCE ENRILE President of the Senate This Act which is a consolidation of Senate Bill No. 2796 and House Bill No. 5808 was finally passed by the Senate and the House of Representatives on June 5, 2012 and June 4, 2012, respectively. (Sgd.) MARILYN B. BARUA-YAP Secretary General House of Representatives (Sgd.) EMMA LIRIO-REYES Secretary of the Senate Approved: SEP 12 2012 (Sgd.) BENIGNO S. AQUINO III President of the Philippines	

ICT-ES – ICT-Enables Services
CIO – Chief Information Officer
NGAs – National Government Agencies
SUCs – State Universities and Colleges
GOCCs – Government-Owned and Controlled Corporations
GFIs – Government Financial Institutions
TESDA – Technical Education and Skills Development Authority
PDP – Philippine Development Plan
CSOs – Civil Society Organizations
DFA – Department of Foreign Affairs
GPPB – Government Procurement Policy Board
NGOs – Non-Government Organizations
POs – People’s Organization
PECE – Professional Electronics Engineer
CSC – Civil Service Commission
NCC – National Computer Center
NCI – National Computer Institute
TELOF – Telecommunications Office
NTTI– National Telecommunications Training Institute
DOTC – Department of Transportation and Communications
ICTO – Information and Communications Technology Office
CERT – Computer Emergency Response Team

Department of Information and Communications Technology (RA10844)	
Section 1. Short Title	This Act shall be known as the “ Department of Information And Communications Technology Act of 2015 ”.
Section 2. Declaration Policy	It is hereby declared the policy of the State: (a) To recognize the vital role of information and communication in nation-building; (b) To ensure the provision of strategic, reliable, cost-efficient and citizen-centric information and communications technology (ICT) infrastructure, systems and resources as instruments of good governance and global competitiveness;

	(c) To ensure universal access to quality, affordable, reliable and secure Id’ services; (d) To promote the development and widespread use of emerging ICT and foster and accelerate the convergence of ICT and ICT-enabled facilities; (e) To ensure the availability and accessibility of ICT services in areas not adequately served by the private sector (f) To foster an ICT sector policy environment that will promote a broad market-led development of the ICT and ICT-enabled services (ICT-ES) sectors, a level playing field, partnership between the public and private sectors, strategic alliance with foreign investors and balanced investments between high-growth and economically-depressed areas; (g) To promote and assist the development of local ICT content, applications and services which may include support for ICT-based start-up enterprises through strategic partnerships; (h) To promote the use of ICT for the enhancement of key public services, such as education, public health and safety, revenue generation, and socio-civic purposes; (i) To encourage the use of ICT for the development and promotion of the country’s arts and culture, tourism and national identity; (j) To promote digital literacy, ICT expertise, and knowledge-building among citizens to enable them to participate and compete in an evolving ICT age: (k) To empower, through the use of ICT, the disadvantaged segments of the population, including the elderly, persons with disabilities and indigenous and minority groups; (l) To ensure the rights of individuals to privacy and confidentiality of their personal information; (m) To ensure the security of critical ICT infrastructures including information assets of the government, individuals and businesses; and (n) To provide oversight over agencies governing and regulating the ICT sector and ensure consumer protection and welfare, data privacy and security, foster competition and the growth of the ICT sector.
Section 3. Definition of Terms	As used in this Act the following terms are defined as follows: (a) Information and Communications Technology or ICT shall mean the totality of electronic means to access, create, collect, store, process, receive, transmit, present and disseminate information: (b) Convergence shall mean the interface between and among various telephony, radio, video, broadcasting and multimedia infrastructure, devices and services, enabling users or subscribers thereof to communicate with one another; (c) Electronic Government or E-Government shall mean the use of ICT by the government and the public to enhance the access to and delivery of government services to bring about efficient, responsive, ethical, accountable and transparent government service: (d) ICT Sector shall mean those engaged in providing goods and services primarily intended to fulfill or enable the function of information processing and communication by electronic means. The ICT sector includes telecommunications and broadcast information operators, ICT equipment manufacturers, multimedia content developers and providers, ICT solution providers, internet service providers, ICT training institutions, software developers and ICT-ES providers; (e) ICT-Enabled Services or ICT-ES Sector shall mean those engaged in providing services that require the intrinsic use of Id’s including engineering or architectural design, informatics service providers, offshoring and outsourcing service providers such as call centers, back office processing, software development, medical or legal transcription, animation, game development, and other services that require the intrinsic use of a networked information infrastructure; and (f) Chief Information Officer or CIO shall mean a senior officer in all national government agencies (NGAs), including constitutional offices, state universities and colleges (SUCs), government-owned and -controlled

	corporations (GOCCs), and government financial institutions (GFIs) responsible for the development and management of the agency’s ICT systems and applications.
Section 4. Creation of the Department of Information and Communications Technology (DICT)	<i>There is hereby created the Department of Information and Communications Technology, hereinafter referred to as the Department.</i>
Section 5. Mandate	<i>The Department shall be the primary policy, planning, coordinating, implementing, and administrative entity of the Executive Branch of the government that will plan, develop, and promote the national ICT development agenda</i>
Section 6. Powers and Functions	The Department shall exercise the following powers and functions: I. Policy and Planning (a) Formulate, recommend and implement national policies, plans, programs and guidelines that will promote the development and use of ICT with due consideration to the advantages of convergence and emerging technologies; (b) Formulate policies and initiatives, in coordination with the Department of Education (DepED), the Commission on Higher Education (CHED), and the Technical Education and Skills Development Authority (TESDA), to develop and promote ICT in education consistent with the national goals and objectives., and responsive to the human resource needs of the ICT and ICT-ES sectors; (c) Provide an integrated framework in order to optimize all government ICT resources and networks for the identification and prioritization of all E-Government systems and applications as provided for in the E-Government Masterplan and the Philippine Development Plan (PDP); II. Improved Public Access (d) Prescribe rules and regulations for the establishment, operation and maintenance of ICT infrastructures in unserved and underserved areas, in consultation with the local government units (LGUs), civil society organizations (CSOs), private sector, and the academe; (e) Establish a free internet service that can be accessed in government offices and public areas using the most cost-effective telecommunications technology, through partnership with private service providers as may be necessary; III. Resource-Sharing and Capacity-Building (f) Harmonize and coordinate all national ICT plans and initiatives to ensure knowledge, information and resource-sharing, database-building and agency networking linkages among government agencies, consistent with E-Government objectives in particular, and national objectives in general; (g) Ensure the development and protection of integrated government ICT infrastructures and designs, taking into consideration the inventory of existing manpower, plans, programs, software, hardware, and installed systems; (h) Assist and provide technical expertise to government agencies in the development of guidelines in the enforcement and administration of laws, standards, rules, and regulations governing ICT; (i) Assess, review and support ICT research and development programs of the government in coordination with the Department of Science and Technology (DOST) and other institutions concerned; (j) Prescribe the personnel qualifications and other qualification standards essential to the effective development and operation of government ICT infrastructures and systems;

	(k) Develop programs that would enhance the career advancement opportunities of ICT workers in government; (l) Assist in the dissemination of vital information essential to disaster risk reduction through the use of ICT; (m) Represent and negotiate for Philippine interest on matters pertaining to ICT in international bodies, in coordination with the Department of Foreign Affairs (DFA) and other institutions concerned; IV. Consumer Protection and Industry Development (n) Ensure and protect the rights and welfare of consumers and business users to privacy, security and confidentiality in matters relating to ICT, in coordination with agencies concerned, the private sector and relevant international bodies; (o) Support the promotion of trade and investment opportunities in the ICT and ICT-ES sectors, in coordination with the Department of Trade and Industry (DTI) and other relevant government agencies and the private sector; (p) Establish guidelines for public-private partnerships in the implementation of ICT projects for government agencies; and (q) Promote strategic partnerships and alliances between and among local and international ICT, research and development, educational and training institutions, to speed up industry growth and enhance competitiveness of Philippine workers, firms, and small and medium enterprises in the global markets for ICT and ICT-ES.
Section 7. Composition	The Department shall be headed by a Secretary. The Department proper shall be composed of the Office of the Secretary, the Offices of the Undersecretaries and the assistant secretaries.
Section 8. Secretary of Information and Communications Technology	The Secretary shall be appointed by the President, subject to confirmation by the Commission on Appointments. The Secretary shall have the following functions: (a) Provide executive direction and supervision over the entire operations of the Department and its attached agencies, (b) Establish policies and standards for the effective, efficient and economical operation of the Department, in accordance with the programs of government; (c) Review and approve requests for financial and manpower resources of all operating offices of the Department: (d) Designate and appoint officers and employees of the Department, excluding the undersecretaries, assistant secretaries, and regional and assistant regional directors, in accordance with the civil service laws, rules and regulations; (e) Exercise disciplinary powers over officers and employees of the Department in accordance with law, including their investigation and the designation of a committee or officer to conduct such investigation: (f) Coordinate with IX5Us. other agencies and public and private interest groups, including nongovernment organizations (NGOs) and people's organizations (POs) on Department policies and initiatives; (g) Prepare and submit to the President through the Department of Budget and Management (DBM) an estimate of the necessary expenditures of the Department during the next fiscal year, on the basis of the reports and estimates submitted by bureaus and offices under him/her; (h) Serve as a member of the Government Procurement Policy Board (GPPB) as established by Republic Act No. 9184; (i) Advise the President on the promulgation of executive and administrative orders and formulation of regulatory and. legislative proposals on matters pertaining to ICT development; (j) Formulate such rules and regulations and exercise such other powers as may be required to implement the objectives of this Act: and (k) Perform such other tasks as may be provided by law or assigned by the President.

Section 9. Undersecretaries	The Secretary shall be assisted by three (3) undersecretaries, who shall be appointed by the President upon the recommendation of the Secretary: Provided, That two (2) of the undersecretaries shall be career officers.
Section 10. Assistant Secretaries	The Secretary shall be assisted by four (4) assistant secretaries who shall be appointed by the President upon the recommendation of the Secretary: Provided, That two (2) of the assistant secretaries shall be career officers: Provided, further, That at least one (1) of the assistant secretaries shall be a licensed Professional Electronics Engineer (PECE), or any suitably qualified person in accordance with Civil Service Commission (CSC) rules and regulations.
Section 11. Qualifications	No person shall be appointed Secretary, Undersecretary, or Assistant Secretary of the Department unless he or she is a citizen and resident of the Philippines, of good moral character, of proven integrity and with at least seven (7) years of competence and expertise in any of the following: information and communications technology, information technology service management, information security management, cybersecurity, data privacy. e-Commerce, or human capital development in the ICT sector.
Section 12. Regional Offices	The Department may establish, operate, and maintain a regional office in the different administrative regions of the country as the need arises. Each regional office shall be headed by a Regional Director, who may be assisted by one (1) Assistant Regional Director. The Regional Director and Assistant Regional Director shall be appointed by the President. The regional offices shall have, within their respective administrative regions, the following functions: (a) Implement laws, policies, plans, programs, projects, rules and regulations of the Department: (b) Provide efficient and effective service to the people: (c) Coordinate with regional offices of other departments, offices, and agencies; (d) Coordinate with the LGUs; and (e) Perform such other functions as may be provided by law or assigned by the Secretary.
Section 13. Chief Information Officer (CIO) Council.	The Department shall facilitate the creation of the CIO Council, which shall consist of CIOs, with the Secretary serving as the Chairman, to assist the Department in the implementation of government ICT initiatives.
Section 14. Sectoral and Industry Task Forces	The Department may create sectoral and industry task forces, technical working groups, advisory bodies or committees for the furtherance of its objectives. Additional private sector representatives, such as from the academe, CSOs, and federation of private industries directly involved in ICT, as well as representatives of other NGAs. LGUs and GOCCs may be appointed to these working groups. Government IT professionals may also be tapped to partake in the work of the Department through, these working groups.
Section 15. Transfer of Agencies and Personnel	(a) The following agencies are hereby abolished, and their powers and functions, applicable funds and appropriations, records, equipment, property, and personnel transferred to the Department: (1) Information and Communications Technology Office (ICTO); (2) National Computer Center (NCC); (3) National Computer Institute (NCI); (4) Telecommunications Office (TELOF); (5) National Telecommunications Training Institute (NTTI); and (6) All operating units of the Department of Transportation and Communications (DOTC) with functions and responsibilities dealing with communications. All offices, services, divisions, units and personnel not otherwise covered by this Act for transfer to the Department shall be retained under the DOTC which is hereby renamed the Department of Transportation. (b) The following agencies are hereby attached, to the Department for policy and program coordination, and shall continue to operate and function in accordance with the charters, laws or orders creating them, insofar as they are not inconsistent with this Act:

	(1) National Telecommunications Commission; (2) National Privacy Commission; and (3) Cybercrime Investigation and Coordination Center (CICC) (i) All powers and functions related to cybersecurity including, but not limited to the formulation of the National Cybersecurity Plan, establishment of the National Computer Emergency Response Team (CERT), and the facilitation of international cooperation on intelligence regarding cybersecurity matters are transferred to the Department; and (ii) The CICC shall be chaired by the DICT Secretary. (c) The laws and rules on government reorganization as provided for in Republic Act No. 6656, otherwise known as the Reorganization Law, shall govern the reorganization process of the Department.
Section 16. Separation and Retirement from Service	Employees who are separated from service within six (6) months from the effectivity of this Act as a result of the consolidation and/or reorganization under the provisions of this Act shall receive separation benefits to which they may be entitled under Executive Order No. 366, s. 2004: Provided, That those who are qualified to retire under existing retirement laws shall be allowed to retire and receive retirement benefits to which they may be entitled under applicable laws and issuances.
Section 17. Structure and Staffing Pattern	Subject to the approval of the DBM, the Department shall determine its organizational structure and create new divisions or units as it may deem necessary, and shall appoint officers and employees of the Department in accordance with the civil service law, rules, and regulations.
Section 18. Magna Carta	Qualified employees of the Department and its attached agencies shall be covered by Republic Act No. 3439, which provides a magna carta for scientists, engineers, researchers and other science and technology personnel in tie government.
Section 19. Transition Period	The transfer of functions, assets, funds, equipment, properties, transactions, and personnel of the affected agencies, and the formulation of the internal organic structure, staffing pattern, operating system, and revised budget of tin Department, shall be completed within six (6) months from the effectivity of this Act, during which time, the existing personnel shall continue to assume their posts in holdover capacities until new appointments are issued: Provided, That after the abolition of tie agencies as specified in Section 15(a) of this Act, the Department, in coordination with the DBM, shall determine and create new positions, the funding requirements of which shall not exceed the equivalent cost of positions abolished.
Section 20. Appropriation	The amount needed for the initial implementation of this Act shall be taken from the current fiscal year's appropriation of the ICTO and all agencies herein absorbed. by or attached to the Department. Thereafter, the amount needed for the operation and maintenance of the Department shall be included in the General Appropriations Act
Section 21. Implementing Rules and Regulations	The ICTC, the DBM, the CSC, and other government agencies concerned shall issue within sixty (60) days from the effectivity of this Act. the necessary rules and regulations for the effective implementation of this Act.
Section 22. Separability Clause	If any provision of this Act shall be declared unconstitutional or invalid, the other provisions not otherwise affected shall remain in full force and effect.
Section 23. Repealing Clause	All laws, decrees, executive orders, rules and regulations and other issuances or parts thereof which are inconsistent with this Act are hereby repealed, amended or modified accordingly.
Section 24. Effectivity	This Act shall take effect fifteen (15; days after its publication in at least two (2) newspapers of general circulation.

Approved,

(Sgd.) **FRANKLIN M. DRILON**
President of the Senate

(Sgd.) **FELICIANO BELMONTE JR.**
Speaker of the House
of Representatives

This Act was passed by the House of Representatives as House Bill No. 6198 on October 9, 2015 and adopted by the Senate as an amendment to Senate Bill No. 2686 on December 15, 2015.

(Sgd.) **OSCAR G. YABES**
Secretary of the Senate

(Sgd.) **MARILYN B. BARUA-YAP**
Secretary General
House of Representatives

Approved: MAY 23 2016

(Sgd.) **BENIGNO S. AQUINO, III**
President of the Philippines